

K.S. Puttaswamy v. Union of India (2017)

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1. Introduction

1. **K.S. Puttaswamy v. Union of India** is a landmark case in Indian Constitutional Law.
2. The case was decided by the **Supreme Court of India in 2017**.
3. The case mainly deals with the **Right to Privacy** of individuals.
4. It questioned whether privacy is protected as a fundamental right under the Indian Constitution.
5. This judgment became very important for protecting the personal freedom and privacy of citizens.

2. Facts of the Case

1. K.S. Puttaswamy, a retired judge, challenged the **Aadhaar scheme** before the Supreme Court.
2. The Aadhaar scheme required people to provide personal and biometric information for identification.
3. Puttaswamy argued that collecting and using such personal information could affect the privacy of individuals.
4. The government argued that the Indian Constitution did not specifically recognise privacy as a fundamental right.
5. Because of this issue, the Supreme Court had to decide whether the **Right to Privacy** is a fundamental right.

3. Legal Issues

1. The court examined whether the Right to Privacy is a fundamental right under the Indian Constitution.
2. It considered whether privacy is protected under **Article 14, Article 19, and Article 21**.
3. Another issue was whether the government can collect personal information from citizens.

4. The court also examined the limits of government interference in a person's private life.
5. Finally, it considered the relationship between individual liberty, dignity, and privacy.

4. Judgment

1. The Supreme Court gave a unanimous judgment recognising the **Right to Privacy as a fundamental right**.
2. The court held that privacy is protected as an important part of personal liberty and human dignity.
3. It stated that the Right to Privacy is protected mainly under **Article 21** and also connected with other fundamental rights.
4. The court clarified that the Right to Privacy is not absolute and can be restricted under certain lawful conditions.
5. This judgment became a landmark decision for protecting the personal rights and freedom of Indian citizens.

5. Legal Principle

1. The **Right to Privacy** is recognised as a fundamental right under the Indian Constitution.
2. Privacy is closely connected with personal liberty, dignity, and individual freedom.
3. The government cannot interfere with privacy without a valid legal reason.
4. Any restriction on privacy must be lawful, necessary, and reasonable.
5. This principle provides important protection for personal information and individual autonomy.

6. Business Relevance

1. The case is important for businesses because companies collect and use personal data of customers.
2. Businesses should protect customer information and avoid using personal data without proper legal reasons or consent.

3. Companies should follow proper data protection and privacy practices while handling customer details.
4. The judgment increased the importance of privacy policies and responsible handling of digital information.
5. It helps businesses understand that protecting customer privacy is important for both legal compliance and customer trust.

7. Conclusion

1. **K.S. Puttaswamy v. Union of India** is one of the most important cases relating to privacy in India.
2. The Supreme Court clearly recognised the Right to Privacy as a fundamental right of every individual.
3. The judgment strengthened the protection of personal liberty, dignity, and individual freedom.
4. It also created an important foundation for privacy and data protection laws in India.
5. Even today, this case remains a major legal precedent in Constitutional Law, especially in the digital age.